



CHAPTER 16.

An Act to amend the Sugar Industry (Reorganization) Act, 1936, as respects the war years.

[29th April 1942.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1.—(1) So much of section five of the principal Act as relates to the determination of—

- (a) the terms and conditions upon which the Corporation is required to make contracts for the purchase of home-grown beet for delivery in any year ;
- (b) the acreage of land in respect of the produce of which such contracts are to be made ; and
- (c) the quantity of home-grown beet that may be acquired from any person by the Corporation,

Purchases of home-grown beet and production and marketing of white sugar.

shall not apply in relation to contracts for delivery in the year 1941-42 or any subsequent war year.

(2) No proposals shall be submitted by the Corporation to the Commission under section six of the principal Act showing arrangements proposed as to the production and marketing by the Corporation of white sugar during the year 1940-41 or any subsequent war year.

(3) The foregoing provisions of this section shall be deemed to have had effect as from the first day of March, nineteen hundred and forty.

2.—(1) Until the end of the war period—

- (a) the provisions of section seven of the principal Act (which relates to the registration of refiners of sugar) shall not have effect ; and

Registration and licensing of refiners.

(b) no licensing scheme shall be made as respects such refiners under section nineteen of the said Act.

(2) The foregoing provisions of this section, so far as those provisions relate to the registration of refiners, shall be deemed to have had effect as from the eleventh day of September, nineteen hundred and thirty-nine.

Provisions
as to Sugar
Refining
Agreement.

3. The following provisions shall have effect in relation to the Sugar Refining Agreement, that is to say—

- (a) during the war period, the said agreement may be modified by the Minister of Food at the request of the parties and with the consent of the Treasury, and not otherwise ;
- (b) the said agreement shall have effect under section eight of the principal Act, and shall be deemed so to have had effect, notwithstanding that, by virtue of any modification thereof effected after the eleventh day of September, nineteen hundred and thirty-nine and before the end of the war period, it does not or did not provide for any matter specified in the Third Schedule to the principal Act ; and
- (c) any scheme in force on the eleventh day of September, nineteen hundred and thirty-nine under section nine of the said Act (which relates to contributions by registered refiners) shall be deemed to have been suspended as from that date until the end of the war period ; and no further scheme shall be made under that section until the last mentioned date.

Assistance
to Sugar
Corporation.

4.—(1) For the purpose of sub-paragraph (i) of paragraph 3 of the Fourth Schedule to the principal Act (which provides for adjustment of the rate of assistance by reference to variations of the customs and excise duties on sugar), the full rate of customs duty chargeable on foreign sugar in the week ended on the second day of October, nineteen hundred and thirty-nine, and any subsequent week in the year 1939-40, shall be deemed to have been—

- (a) in the case of sugar of a polarisation exceeding ninety-eight degrees but not exceeding ninety-nine degrees, a rate of nineteen shillings and nine and three-fifths pence per hundredweight ; and
- (b) in the case of sugar of a polarisation exceeding ninety-nine degrees, a rate of twenty-one shillings per hundred-weight.

(2) For the purpose of sub-paragraph (ii) of the said paragraph 3 (which provides for adjustment of the rate of assistance consequent on alterations of the average raw sugar price), and of any agree-

ment made under subsection (4) of section fourteen of the principal Act, the average raw sugar price for the week beginning on the eleventh day of September, nineteen hundred and thirty-nine, and any subsequent week in the year 1939-40, shall be deemed to have been seven shillings and sixpence per hundred-weight.

(3) For the purpose of sub-paragraph (iv) of the said paragraph 3 (which provides for adjustment of the rate of assistance by reference to the appropriate percentage of the difference between the estimated and the actual maximum quota income for any year), the appropriate percentage for the year 1939-40 shall be deemed to have been one hundred per cent.

(4) No assistance shall be paid to the Corporation under section ten of the principal Act in respect of sugar manufactured by the Corporation in the year 1940-41 or any subsequent war year; and accordingly no rate shall be prescribed by the Minister for any such year under section fourteen of that Act.

(5) The last foregoing subsection shall be deemed to have had effect as from the first day of April, nineteen hundred and forty.

(6) No supplementary payments shall be made to the Corporation under section fifteen of the principal Act (which relates to poor crops due to adverse farming conditions) in respect of the year 1940-41 or any subsequent war year.

5. Section twelve of the principal Act (which requires the Corporation to comply with directions and orders of the Minister with respect to reserves) shall not have effect during the war period. Reserves of Corporation.

6.—(1) The operation of any scheme in force on the first day of April, nineteen hundred and forty-one, under section eighteen of the principal Act (which relates to research and education) shall be deemed to have been suspended as from that date until the end of the war period. Research and education.

(2) The appropriate Minister, after consultation with the Corporation and any body which in the opinion of that Minister is substantially representative of growers of home-grown beet, may prepare for the year 1941-42 or any subsequent war year a programme for carrying out research and education in matters affecting the growing of home-grown beet, and may by order make provision for carrying any such programme into effect.

(3) Any such programme for any year shall contain an estimate of the amount of the expenditure to be incurred in carrying it out, and any order made for carrying any such programme into effect shall, in particular, make provision—

(a) for assessing the contributions towards defraying such expenditure to be made by the Corporation and by

every grower of home-grown beet who delivers beet to the Corporation in that year ; and

- (b) for collecting such contributions (including provision for the recovery of such contributions as a civil debt) :

Provided that the amount of such contributions shall be limited in accordance with paragraphs (i) and (ii) of the proviso to subsection (2) of the said section eighteen.

(4) All contributions paid in accordance with an order made under this section shall be paid into the research and education fund mentioned in subsection (3) of the said section eighteen, and all expenditure certified by the appropriate Minister to have been properly incurred in carrying out any programme prepared under this section (including expenditure incurred by him or on his behalf) shall be defrayed out of that fund.

(5) During the war period the said fund shall be controlled by the Minister of Agriculture and Fisheries instead of being controlled by the Commission, and an account showing the revenue and expenditure of the said fund attributable to the year 1941-42 and any subsequent war year shall, not later than the thirtieth day of November in the year following that to which it relates, be transmitted by that Minister to the Comptroller and Auditor General, who shall examine and certify the accounts and lay copies thereof together with his report thereon before Parliament.

(6) In this section the "appropriate Minister" means the Minister of Agriculture and Fisheries or, in relation to a programme or order extending to Great Britain, that Minister and the Secretary of State, or, in relation to a programme or order extending to Scotland only, the Secretary of State.

Transfer of certain functions to Minister of Food.

7. During the war period, the functions of the Minister of Agriculture and Fisheries under the articles of association of the Corporation and under the following provisions of the principal Act, that is to say—

- (a) the provisions of subsection (3) of section three, prohibiting alterations of the memorandum or articles of association of the Corporation without the approval of the Minister given with the consent of the Treasury ;
- (b) the provisions of subsection (1) of section twenty-three, requiring the Minister to refer certain disputes as to wages to the Industrial Court ;

shall be exercised by the Minister of Food.

Suspension of miscellaneous functions of Sugar Commission.

8.—(1) Section seventeen of the principal Act (which requires the Commission to make a report as respects the rates of excise duty on certain sugar not later than the thirty-first day of March, nineteen hundred and forty-one) shall have effect as if for the reference to that date there were substituted a reference to the end of the year after the last war year.

(2) The provisions of section twenty-six of the principal Act (which relates to the furnishing of information to the Commission) shall not have effect during the war period.

(3) No report shall be submitted under section twenty-eight of the principal Act on the discharge by the Commission of their functions during the year 1939-40 or any subsequent war year.

(4) The last foregoing subsection shall be deemed to have had effect as from the first day of April, nineteen hundred and forty.

9. In this Act the following expressions have the meanings hereby respectively assigned to them—

"the principal Act" means the Sugar Industry (Reorganization) Act, 1936; 26 Geo. 5 & 1 Edw. 8. c. 18.

"the year 1939-40" means the twelve months beginning on the first day of April, nineteen hundred and thirty-nine, and any corresponding expression in which two years are similarly mentioned means the twelve months beginning on the first day of April in the first mentioned of those years;

"war period" means the period beginning at the commencement of this Act and ending at the expiration of the last war year;

"war year" means the year 1939-40 and any subsequent year during the whole or any part of which the Emergency Powers (Defence) Act, 1939, is in force;

and other expressions have the same meaning as in the principal Act. 2 & 3 Geo. 6. c. 62.

10.—(1) This Act may be cited as the Sugar Industry Act, 1942.

(2) This Act and the principal Act may be cited together as the Sugar Industry Acts, 1936 and 1942. Short title, citation and extent.

(3) Except in so far as it affects provisions of the principal Act which extend to the United Kingdom, this Act shall not extend to Northern Ireland.